

SENATE No. 1029

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to eliminate the public counsel fee.

PETITION OF:

NAME:

Michael J. Barrett

DISTRICT/ADDRESS:

Third Middlesex

SENATE No. 1029

By Mr. Barrett, a petition (accompanied by bill, Senate, No. 1029) of Michael J. Barrett for legislation to eliminate the public counsel fee. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 905 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to eliminate the public counsel fee.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (f) of section 2A of chapter 211D of the General Laws is hereby
2 amended by striking out in the first two sentences, each time it appears, the figure “\$150” and
3 inserting in place thereof, in each instance, the following figure:- \$100.

4 SECTION 2. Said subsection (f) of said section 2A of said chapter 211D is hereby further
5 amended by striking out in the first two sentences, each time it appears, the figure “\$100” and
6 inserting in place thereof, in each instance, the following figure:- \$50.

7 SECTION 3. Said section 2A of said chapter 211D is hereby further amended by striking
8 out subsection (f), and inserting in place thereof the following subsection:-

9 (f) Notwithstanding any general or special law to the contrary, no person determined to
10 be indigent shall be assessed a counsel fee.

11 SECTION 4. Section 1 of this act shall take effect on July 1, 2027.

12 SECTION 5. Section 2 of this act shall take effect on July 1, 2028.

13 SECTION 6. Section 3 of this act shall take effect on July 1, 2029.